

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008270

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

IN THE MATTER OF:

SAUSALITO YACHT CLUB MEMBERS
FOR FAIR GOVERNANCE

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR
PROGRAM

RULING

This matter is continued to October 14, 2026, at 1:30 pm to be heard in conjunction with several other discovery motions set for that date, and for the parties to participate in the Discovery Facilitator Program.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009539

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PAUL SUNAK

vs.

DEFENDANT: USHA SUNAK, ET AL

NATURE OF PROCEEDINGS: MOTION - PRELIMINARY INJUNCTION

RULING

Plaintiff Paul Sunak's ("Plaintiff") motion for a preliminary injunction is DENIED.

BACKGROUND

This is a dispute between family members over possession of real property. Plaintiff alleges that beginning in November 2015, he leased real property at 5 Harbor Drive in Novato from Defendants Usha and Gurbax Sunak, who are Plaintiff's parents. (FAC,¹ ¶ 17 & Ex. B [commercial lease]; Sunak Dec., ¶ 2.) According to Plaintiff, the 5 Harbor Drive property "is primarily a commercial property with attached space that can be used as residential living space." (FAC, ¶ 16.) Plaintiff leased the property for business purposes. (*Id.* at ¶ 18; see also Sunak Dec., ¶ 3.) He alleges that he renewed his lease in August 2025. (FAC, ¶ 20.)

Plaintiff asserts that he and his parents contemplated that the property would be developed into a gas station and/or a marijuana dispensary. (FAC, ¶ 21.) They allegedly agreed that Defendants would lease a portion of the property to a third-party tenant to generate income while plans to develop the property into a gas station or dispensary were underway. (*Id.* at ¶ 22.) In December 2015, Defendants leased a garage on the property to A&C Towing and Transportation, Inc. on a month-to-month basis. (*Id.* at ¶ 23 & Ex. D.) According to the FAC, A&C Towing has since vacated the garage or transferred its interest in the garage to Valley Towing. (*Id.* at ¶ 28.)

¹ At the time Plaintiff filed this motion, the operative complaint was the original complaint, not the FAC. The FAC has not made any changes that are significant for purposes of this motion. Under these circumstances, Plaintiff's amending the complaint does not affect the order to show cause nor moot his motion for a preliminary injunction. (See *Ramos v. United Slate, Tile & Composition Roofers, Damp & Waterproof Workers Ass'n, Local No. 40 et al.*, 113 Cal.App.2d 31, 36.)